

Special Court Act, 2002

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Amending Acts

1. Special Court (First Amendment) Act, 2064 (2007) 2064.05.19
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.01.07
3. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14

Act No. 2 of the year 2059 (2002)

An Act Made to Provide for the Constitution, Jurisdiction and Procedure of the Special Court

Preamble: Whereas, it is expedient to make timely legal provisions relating to the constitution, jurisdiction and procedure of a Special Court for conducting proceedings and disposal of certain types of cases in a speedy, simple and effective manner;

Be it enacted by Parliament in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev.

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Special Court Act, 2059 (2002)".
- (2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Special Court" means the Special Court constituted pursuant to Section 3.
 - (b) "Certain types of cases" means certain types of cases specified by the Government of Nepal by publishing a notification in the Nepal Gazette for the purpose of sub-section (1) of Section 3.
 - (c) "Chairperson" means the Chairperson of the Special Court.
 - (d) "Member" means a member of the Special Court, and this term shall also include the Chairperson.

Chapter-2

Constitution of the Special Court

3. Constitution of Special Court: (1) The Government of Nepal may, on the recommendation of the Judicial Council, publish a notification in the Nepal Gazette and constitute a Special Court with amended by the First Amendment.the required number of members for conducting proceedings and disposal of certain types of cases in a speedy, simple and effective manner. Added by the First Amendment.(1A) Where a Special Court

with more than three members is constituted pursuant to sub-section (1), Benches shall be formed with three members in each Bench.

(2) The Government of Nepal shall, on the recommendation of the Judicial Council, appoint the Chairperson and members of the Special Court constituted pursuant to sub-section (1) from among the judges of the Court of Appeal.

(3) While constituting the Special Court pursuant to sub-section (1), the Government of Nepal shall also specify the territorial jurisdiction and seat of such Special Court.

(4) The Government of Nepal may, by publishing a notification in the Nepal Gazette, specify a seat other than the place where the seat of the Special Court is located, for the period specified in that notification, by constituting a Bench there. 4.

Power to Add or Subtract Cases: The Government of Nepal may, by publishing a notification in the Nepal Gazette, add or subtract from the cases assigned to the Special Court constituted under Section 3. 5.

Facilities of Members: The remuneration and other facilities of the Chairperson and members of the Special Court shall, in addition to what they already receive, be as prescribed by the Government of Nepal. Chapter-3

Jurisdiction of the Special Court and its Exercise 6. Jurisdiction and Exercise of the Special Court: (1) Initial proceedings and disposal of certain types of cases shall be conducted by the Special Court. Amended by the First Amendment.(2) The jurisdiction of the Special Court shall be exercised collectively by all members present in the Bench. Provided that a Bench composed of one member may conduct proceedings of a case other than proceedings relating to interim bail, and a Bench composed of two members may conduct proceedings relating to interim bail and disposal of the case. (3) In a Bench where three members are present, if there is unanimity among all three members or a majority of two members, that opinion shall be deemed to be the decision of the Court. (4) If unanimity is not reached in a Bench where two members are present, in the case of proceedings, if the Bench includes the Chairperson, the matter shall be decided according to the opinion of the Chairperson, and if the Bench does not include the Chairperson, according to the opinion of the senior member; in the case of a judgment or final order of the case, it shall be submitted to the member who was previously absent, and the opinion supported by that member shall be deemed to be the decision of the Court. (5) If a majority cannot be reached even after submission to the member who was previously absent pursuant to sub-section (4), the matter shall be submitted to the Supreme Court for decision. (6) The Supreme Court shall grant priority to and hear the case submitted pursuant to sub-section (5). (7) The hearing of a case submitted pursuant to sub-section (5) shall be conducted by a single judge Bench of the Supreme Court, and the decision made by that Bench shall be deemed to be the decision of the Special Court. Added by the First Amendment.(8) If it is necessary to form more than one Bench in the Special Court, the Chairperson shall form the Benches and assign cases. Added by the First Amendment.(9) In the absence of the Chairperson, the power of the Chairperson pursuant to sub-section (8) shall be exercised by the senior member among those present.

Chapter-4 Powers and Procedure of the Special Court 7. Powers of the Special Court: The powers of the Special Court shall be as follows:- (a) To examine, in addition to the witnesses of the plaintiff and defendant, any other persons or evidence deemed necessary in relation to the case, (b) To issue a warrant and arrest a defendant or witness who fails to appear on summons, to record their statement or deposition, (c) To conduct the trial by keeping any party to the case on recognizance, or to summon them when necessary, or to conduct the trial without keeping them on recognizance for appearance at a specified time, (d) If it does not appear necessary, based on the evidence immediately available, to keep an accused in custody for trial, to

demand a deposit or surety from them taking into account the amount of loss or damage caused by them or the amount unlawfully taken, and the possible imprisonment or fine that may be imposed on them, (e) If there is sufficient and reasonable cause to keep an accused in custody for trial based on the evidence immediately available, to keep them in custody for trial, notwithstanding anything contained in the prevailing law, (f) The Special Court may, to the extent of the forfeiture, confirm the deposit or surety taken by the investigating body during the course of investigation. 8. Power to Freeze Property and Passport: Based on the gravity of the charge against an accused, the status of the accused, the extent and nature of the offense, the Special Court may order the relevant authority to freeze any property of such accused, not to issue a passport to such accused, or to freeze such passport if already issued. 9.

10. Procedure Regarding Service of Summons: (1) While sending a summons in the name of a defendant in a case pending in the Special Court, a notice may be issued fixing a period of up to thirty days for those residing abroad, and up to fifteen days for those residing within Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009)., excluding the time for travel.

(2) If a notice is to be served in the name of a defendant residing abroad pursuant to sub-section (1), if such defendant has any office or representative in Nepal, the notice shall be served in the name of such office or representative, and the notice so served shall be deemed to have been duly served.

(3) If there is no office or representative as per sub-section (2), if there is a principal place of business of such defendant, or a permanent residence address, or any address given by them for correspondence at the time of transaction, the notice shall be served at such address via telex, telefax, or any other means of telecommunication capable of creating a record, or by registered post, and the notice so served shall be deemed to have been duly served.

(4) Notwithstanding anything contained in sub-section (2) or (3), if a separate provision is made regarding the service of notice in the name of a defendant residing abroad in any treaty to which Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). or the Government of Nepal is a party, nothing in this section shall be deemed to prevent the service of notice in accordance with that provision.

(5) While sending a summons in the name of a witness in a case pending before the Special Court, a notice may be issued fixing a period of up to seven days, excluding the time for travel.

(6) A summons issued pursuant to this section may be served by an employee of the Special Court or through the District Court or any other nearby government office.

It shall be the duty of the officer-in-charge (Shrestedar) of the concerned District Court or the head of such office to have the summons received from the Special Court served promptly.

(7) An employee going to serve a summons issued by the Special Court shall complete the service within two days, excluding travel time, and if it appears that the service of summons was delayed without any reasonable cause, the Special Court may impose a fine of up to five hundred rupees on such employee.

(8) If any person, upon knowing that a summons has been issued in their name from the Special Court, submits an application to the Special Court or to the Court or office where the summons was sent for service, requesting to receive the summons issued in their name, such summons may be served on that person. No fee shall be charged for submitting such an application.

(9) If, while attempting to serve a summons in the name of any person by adopting the procedure under this

section, a report is received that the address of such person could not be traced or the summons could not be delivered for any other reason, a public notice shall be published at least twice in a national-level newspaper (in an English daily for foreigners) mentioning a brief description of the case filed in the Special Court, giving such person a period of up to thirty days to appear, and upon such publication of notice, the summons shall be deemed to have been duly served on that person.

(10) Except as provided in this section, other provisions relating to the service of summons shall be according to the prevailing law. 11. Provision for Adjournment of Summons Date: If a petition is filed in a case pending in the Special Court, or in an appeal against the decision of that Court, for adjournment of the summons date stating the cause and basis of circumstances beyond control, and if the content thereof appears reasonable, the summons date may be adjourned once for a maximum period of fifteen days. 12. Other Powers and Procedure: While conducting proceedings and disposal of a case, the Special Court shall, to the extent provided in this Act, act according to this Act, and for matters other than that, the Special Court may exercise the powers and procedures equivalent to those of a District Court under the prevailing law. Chapter-5

Miscellaneous

13. Taking Oath: The Chairperson and members shall, before assuming their office, take an oath before the Chief Justice of the Supreme Court in the format as per the Schedule. 14.

Contempt: The Special Court may initiate proceedings for contempt of itself, and if found guilty of contempt, it may impose a fine of up to five thousand rupees or imprisonment for up to six months or both. Provided that if the accused tenders an apology to the satisfaction of the Special Court, the Special Court may forgive them, or if a sentence has already been imposed, it may remit or reduce that sentence, or stay the sentence for up to six months subject to conditions specified by the Special Court, and order that the sentence not be executed if such conditions are fulfilled. 15. Obligation to Send Case Records or Documents or Replies Requested by the Special Court: If the Special Court orders any office to submit or send any case record, document, or any other thing required as evidence in a case, or requests clarification or a reply on any matter, that office must comply with such order within a reasonable time. If the proceedings or disposal of the case are hindered or any party is subjected to undue harassment or adverse effect due to the failure of any office to comply with such order, the Special Court may impose a fine of up to five hundred rupees on the head of the concerned office or employee for each instance. Provided that if, after such order of fine, the head of the concerned office or employee submits a petition stating that the fine should not be imposed because of the reason for being unable to comply with the Court's order, and if the reason appears satisfactory, the Special Court may cancel such order of fine. 16. Period for Disposal of Case: (1) The Special Court shall, generally, dispose of the case within six months from the date of filing of the case. (2) The Supreme Court shall, generally, dispose of an appeal against the decision of the Special Court with priority within three months from the date of receipt of the case file. 17. Appeal: A party dissatisfied with a judgment or final order of the Special Court may appeal to the Supreme Court within thirty-five days from the date of such judgment or final order. 18. Execution of Judgment: A judgment or final order made by the Special Court shall be executed by the body specified in the judgment or final order as the executing body, and if not so specified, by the concerned District Court. 19.

To be Tabled in Parliament: The Government of Nepal shall cause the notifications published under this Act to be tabled in Amended by the Some Nepal Acts Amendment Act, 2062 (2005).the Federal Parliament. 20. Dissolution of Special Court: (1) The Government of Nepal may, by publishing a notification in the Nepal Gazette, dissolve the Special Court. (2) If the Special Court is dissolved pursuant to sub-section (1), the

cases or complaints pending in the Special Court at the time of dissolution shall stand transferred to the Court of Appeal having the concerned territorial jurisdiction.

21. Provision of Staff: (1) The staff required for the Special Court shall be provided by the Government of Nepal. (2) An officer designated by the Government of Nepal by publishing a notification in the Nepal Gazette shall act as the departmental head or administrative head of the Special Court.

22. Contact with Government of Nepal: The Special Court shall, while contacting the Government of Nepal, do so through the Ministry of Law, Justice and Parliamentary Affairs.

23. Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of the objectives of this Act.

24. Repeal and Saving: (1) The Special Court Act, 2031 (1974) is hereby repealed. (2) All acts and proceedings done under the Special Court Act, 2031 (1974) shall be deemed to have been done under this Act.

25. Transfer of Cases: Upon the constitution of the Special Court under this Act, the cases pending in the Special Court constituted under the Special Court Act, 2031 (1974) at that time shall stand transferred to the Special Court under this Act.

26. Adaptation: The words "Special Court Act, 2031 (1974)" used in the prevailing law are hereby adapted and replaced by the words "Special Court Act, 2059 (2002)".

Schedule (Relating to Section 13) Oath I, , do sincerely promise / swear in the name of God that I, remaining fully loyal to the Nepali people, the prevailing Constitution and other laws, shall faithfully discharge the responsibilities of the office of that I have assumed, without acting contrary to the integrity and dignity of the judiciary, and without being influenced by fear, favor, partiality, malice or greed, and I shall not disclose any matter that comes to my knowledge in the course of performing my duties, except when required to comply with the prevailing law, whether I remain in office or not.

Date: Signature